



ABSTRACT

Guidelines – Concurrence for the buildings of the Educational Institutions constructed and functioning as Educational use buildings prior to 01.01.2011 in non-plan area – Guidelines – Issued.

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Housing and Urban Development [UD4(3)] Department

G.O.(Ms.)No.76

Dated:14.06.2018

விளம்பி, வைகாசி 31,
திருவள்ளூர் ஆண்டு 2049

Read:

From the Commissioner of Town and Country Planning, Letter No.18715/2016-BA2, dated 12.03.2018 and 16.04.2018.

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ORDER:

In the letters read above the Commissioner of Town and Country Planning has submitted a proposal to the Government along with draft guidelines for according concurrence for the buildings of the Educational Institutions functioning prior to 01.01.2011 in non-plan area, based on the representations received from the Consortium of Self-Financing Professional, Arts and Science Colleges in Tamil Nadu and Federation of Association of Private Schools in Tamil Nadu.

2. The Government after careful examination, have decided to accept the proposal of the Commissioner of Town and Country Planning for according concurrence for the buildings of the Educational Institutions functioning prior to 01.01.2011 in non-plan areas in the State and issue the following guidelines:-

- (1) **Eligibility:-** The buildings of educational institutions constructed and functioning as educational use buildings prior to 01.01.2011 are eligible to obtain concurrence of the Town and Country Planning Department.
- (2) **Charges:-** One time charge of Rs.7.50/- per sq.ft. of the Floor Space Index (FSI) area of the buildings shall be self-assessed and paid on-line in the Infrastructure and Amenities Fund Account. Balance amount if any to be paid will be collected by the planning authority/regional office before grant of concurrence. Off-line payment option will also be made available.
- (3) **Last date for receipt of application:-** The concession will be valid for a period of 3 months from the date of issue of orders.
- (4) **Procedure for grant of concurrence:-** The receipt of application and self-assessed payment of fees and grant of concurrence order will be on-line.

(5) Details to be submitted by applicant online:-

- a) Proof of the institution functioning and building being in use / existence prior to 1.1.2011 (Approval order copy of All India Council of Technical Education/All India Council of Medical Education / Panchayat / Department of School Education/ Department of Higher Education / Electricity bill payment challan).
- b) No objection certificate of the Fire Safety and Rescue Services department.
- c) Ownership document copy duly self-attested
- d) Certificate of the licensed surveyor and structural engineer/ architect certifying that the building plans prepared and furnished are as per the site conditions and for the total floor area and FSI area of the buildings.

(6) Competent authority to grant concurrence:-

Director of the Town and Country Planning.

(7) The Acts and rules to be adhered to:-

- a) The Civil Aviation Regulations of the Ministry of Civil Aviation under the Aircraft Act, 1934 (Central Act XXII of 1934);
- b) The Ministry of Defence Regulations for developments in the vicinity of the Air Force stations within 100 metres around areas notified under the works of Defence Act, 1903 (Central Act 7 of 1903);
- c) The Coastal Zone Regulations of the Ministry of Environment, Forest and Climate Change under the Environment (Protection) Act, 1986 (Central Act 29 of 1986);
- d) The Ancient Monuments and Archaeological Sites and Remains Act, 1958 (Central Act 24 of 1958);
- e) Height Restrictions to buildings envisaged in the guidelines for regulation of development in the vicinity of heritage structures / places in Heritage Towns notified by the Government.
- f) Rules related to regulation of developments adjoining the Atomic Power Plants.
- g) Indian Electricity Act and Rules.
- h) Tamil Nadu District Municipalities (Hill Stations) Building Rules, 1993.

- (8) **Buildings prohibited:-** No building with any encroachment including aerial encroachment on to a public road or street or on a poramboke land or on local authority lands, open space and recreational areas, water bodies and land affected by the erstwhile Tamil Nadu Urban Land (Ceiling and Regulation) Act, 1978 (Tamil Nadu Act 24 of 1978) shall be considered for concurrence.

3. The Commissioner of Town and Country Planning has been directed to pursue action accordingly.

(BY ORDER OF THE GOVERNOR)

**S.KRISHNAN,
PRINCIPAL SECRETARY TO GOVERNMENT.**

To

The Additional Chief Secretary to Government,
Finance Department, Chennai-600009.

The Additional Chief Secretary to Government,
Rural Development and Panchayat Raj Department,
Chennai-600009.

The Principal Secretary to Government,
Municipal Administration and Water Supply Department,
Chennai-600009.

The Principal Secretary to Government,
School Education Department, Chennai-600009.

The Principal Secretary to Government,
Higher Education Department, Chennai-600009.

The Secretary to Government, Law Department,
Chennai-600009.

All District Collectors

The Commissioner of Town and Country Planning,
Chennai-600002.

The Member Secretary,
Chennai Metropolitan Development Authority,
Chennai-600008.

Copy to:

The Deputy Secretary to Deputy Chief Minister,
Chennai-600009.

The O/o. Deputy Chief Minister, Chennai-600009.

The Principal Private Secretary to Principal Secretary to Government,
Housing and Urban Development Department,
Chennai-600009.

SF/SC.

//FORWARDED BY ORDER//

SECTION OFFICER.